

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jean Paul Lozada	Team: Squad #01	CCRB Case #: 201801879	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Thursday, 03/08/2018 1:47 PM	Location of Incident: 32 West 92nd Street and the 24th Precinct stationhouse	18 Mo. SOL 9/8/2019	Precinct: 24		
Date/Time CV Reported Fri, 03/09/2018 11:33 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 03/09/2018 11:33 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM William Bodner	23938	962951	024 PCT
2. POF Lindsey Robles	09206	947809	024 PCT
3. POM Nelson Gomez	08789	957545	024 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Paola Acosta	01263	964357	024 PCT
2. POM Henry Lopez	21933	947659	024 PCT
3. SGT Michael Burns	4038	948720	024 PCT
4. POM Jose Rodriguez	27982	939341	024 PCT
5. POM James Louie	25910	964130	024 PCT
6. POM Fernando Grace	17339	938604	024 PCT
7. POF Nelly Sayago	03568	957138	024 PCT
8. POF Mary Bonafede	7074	960264	024 PCT
9. POM Frantz Armand	19567	963854	024 PCT
10. POM Harold Mauras	10530	949283	024 PCT
11. SGT Linhong Li	04116	952993	024 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM William Bodner	Abuse: At 32 West 92nd Street in Manhattan, Police Officer William Bodner stopped § 87(2)(b)	A . Exonerated
B . POM Nelson Gomez	Discourtesy: At 32 West 92nd Street in Manhattan, Police Officer Nelson Gomez spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POF Lindsey Robles	Off. Language: At the 24th Precinct stationhouse, Police Officer Lindsey Robles made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	C . Unsubstantiated
D . POF Lindsey Robles	Abuse: At the 24th Precinct stationhouse, Police Officer Lindsey Robles strip-searched § 87(2)(b)	D . Unsubstantiated
E . POF Lindsey Robles	Abuse: At the 24th Precinct stationhouse, Police Officer Lindsey Robles performed a cavity search of § 87(2)(b)	E . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b) § 87(2)(g)	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Case Summary

On March 9, 2018, § 87(2)(b) filed this complaint with the CCRB via telephone.

On March 8, 2018, at approximately 1:47 p.m., Police Officer William Bodner of the 24th Precinct stopped § 87(2)(b) in front of 32 West 92nd Street in Manhattan (**Allegation A: Abuse of Authority, exonerated**). Police Officer Nelson Gomez of the 24th Precinct allegedly told § 87(2)(b) that she must have been hungry because she stole a Hungry Man frozen dinner, and allegedly said she was skinny because she takes laxatives (**Allegation B: Discourtesy, unsubstantiated**). At the front desk of the 24th Precinct stationhouse, PO Lindsey Robles of the 24th Precinct allegedly said, “Step back, dude,” to § 87(2)(b) (**Allegation C: Offensive Language, unsubstantiated**). PO Robles allegedly exposed § 87(2)(b) breasts and vagina, touched her bare breasts and buttocks, and conducted a cavity search of her vagina at the front desk (**Allegations D and E: Abuse of Authority, unsubstantiated**). § 87(2)(b) was released from the 24th Precinct stationhouse with a desk appearance ticket for § 87(2)(b) (Board Review 01).

Surveillance footage from the Duane Reade store at 775 Columbus Avenue (Board Review 02) and Public School 84 at 32 West 92nd Street (Board Review 03) was obtained. § 87(2)(g)

§ 87(2)(g)

Findings and Recommendations

Allegation (A) Abuse of Authority: At 32 West 92nd Street in Manhattan, Police Officer William Bodner stopped § 87(2)(b)

§ 87(2)(b) (Board Review 04) stated that she took a Hungry Man frozen dinner, two packages of false fingernails, and laxatives from a Duane Reade store at 775 Columbus Avenue in Manhattan, placed these items into her pink gym bag, and exited the store without paying. § 87(2)(b) is a Hispanic female with blonde hair and a fair complexion, and she stated that she was wearing black, snug-fitting Spandex pants, black high-rise, high-heeled boots, a heavy black winter coat, a short-sleeved, low-cut, stretchy black cotton shirt, and fuzzy black earmuffs. § 87(2)(b) walked south on Central Park West from West 97th Street to West 92nd Street. When she reached 32 West 92nd Street, PO Bodner exited his police vehicle and asked § 87(2)(b) if he could speak to her, and § 87(2)(b) stopped walking. PO Bodner then told her that he received a call from Duane Reade and asked her if he could see the items she took from the store. § 87(2)(b) said yes, removed the contents of her pink bag, and placed them onto the sidewalk, and she offered to take the stolen items back to Duane Reade.

The Sprint (Board Review 05) reveals that a male 911 caller stated that a white female with blonde hair wearing an all-black outfit and high heels and carrying a large pink duffel bag stole items from Duane Reade and was travelling south on Central Park West towards West 93rd Street.

The surveillance footage from Duane Reade and P.S. 84 (Board Review 02, 03) confirms that § 87(2)(b) had blonde hair, wore an all-black outfit with black high-heeled boots, and carried a large pink bag. § 87(2)(b) is seen placing an item into her pink bag, grabbing another item, and exiting the store without paying for these items. § 87(2)(b)'s appearance did not change from the moment she left the store to the moment she was stopped in front of P.S. 84.


201801879_20180606_0958_DM.mp4


201801879_20180606_0952_DM.mp4


201801879_20180606_0955_DM.mp4


201801879_20180614_1625_DM.mp4

PO Bodner (Board Review 06) stated that he received a radio run for a larceny in progress at Duane Reade, and that this radio run described the suspect as a white female wearing an all-black outfit with black heels and a pink bag walking towards West 92nd Street and Central Park West. Approximately one minute later, while PO Bodner and Sgt. Lin Hong Li were driving east on West 92nd Street towards Central Park West, PO Bodner spotted § 87(2)(b) walking west on West 92nd Street towards Columbus Avenue. § 87(2)(b) matched the description of the suspect, and her large pink bag caught his attention right away. PO Bodner informed Sgt. Li of this and said she must be the suspect. Sgt. Li did not respond. There was no one else in the area who remotely matched the description of the suspect. Approximately three minutes after he received the radio run, PO Bodner pulled over the vehicle, approached § 87(2)(b) and told her that she needed to stop because he was conducting an investigation in regards to something that had occurred at Duane Reade. § 87(2)(b) confessed to shoplifting, removed the stolen items from her bag, and placed them onto the sidewalk.

An officer may stop and detain an individual if he or she has reasonable suspicion that the individual has committed, is committing, or is about to commit a crime (People v. DeBour, 40 N.Y.2d 210; 1976). Reasonable suspicion is defined as “the quantum of knowledge to induce an ordinarily prudent and cautious man under the circumstances to believe criminal activity is at hand,” and such a stop must be “predicated on specific, articulable facts,” and not “vague or unparticularized hunches (People v. Cantor, 36 N.Y.2d 106; 1975).” A finding of reasonable suspicion is supported by the “general similarity of the physical characteristics of the defendant” to a description of the offender provided in a police radio call, as well as the officer’s observation of the defendant’s “close temporal and spatial proximity” to the offense (People v. Peterson, 110 A.D.3d 1103; 2013). See Board Review 07.

§ 87(2)(g)

§ 87(2)(b). It is therefore recommended that **Allegation A** be closed as **exonerated**.

Allegation (B) Discourtesy: At 32 West 92nd Street in Manhattan, Police Officer Nelson Gomez spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that after she placed the stolen Hungry Man frozen dinner and laxatives onto the sidewalk, PO Gomez told her that she must have been hungry because she stole a Hungry Man and that she was skinny because she took laxatives.

§ 87(2)(b) (Board Review 08), a former manager of the Duane Reade store at 775 Columbus Avenue, was transported to 32 West 92nd Street from Duane Reade in a police vehicle

by unidentified officers to confirm that § 87(2)(b) was the same person he saw shoplifting in the store's surveillance footage. He remained in the police vehicle with its windows up, but he noted that he could hear what was happening outside of the vehicle. When he arrived, he saw that § 87(2)(b) was stopped and that the Hungry Man frozen dinner and other items were on the ground. § 87(2)(b) described the officers' demeanors as "professional." He stated that no officer said anything akin to, "You must have been so hungry because that's a Hungry Man," or, "That's why you're so skinny, because you take laxatives." § 87(2)(b) confirmed that § 87(2)(b) was the shoplifting suspect, and then the officers took him back to Duane Reade. § 87(2)(b) stated that he was present at 32 West 92nd Street for approximately five to ten minutes.

PO Gomez (Board Review 09) denied making any statements akin to those alleged by § 87(2)(b) and he also denied making any reference to § 87(2)(b) physical appearance. He stated that he had no interaction with § 87(2)(b) whatsoever until the moment he escorted her to his police vehicle.

PO Bodner and PO Gomez's partner, PO Robles (Board Review 10), provided consistent statements in regards to this allegation. Neither had any knowledge of any officer saying anything about § 87(2)(b) being hungry or skinny. PO Bodner stated that no officer addressed § 87(2)(b) physical appearance, and PO Robles had no knowledge of any officer referring to § 87(2)(b) appearance. PO Paola Acosta (Board Review 11) stated that she was present at the scene for approximately two to three minutes and observed the moment when § 87(2)(b) stolen goods were discovered. She did not hear any officer make the alleged comments, nor did she hear any officer make any remarks to § 87(2)(b) about her physical appearance. None of the officers interviewed heard § 87(2)(b) complain of an officer making any such remarks.

§ 87(2)(g)
It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation (C) Offensive Language: At the 24th Precinct stationhouse, Police Officer Lindsey Robles made a remark to § 87(2)(b) based upon the gender of § 87(2)(b)

Allegation (D) Abuse of Authority: At the 24th Precinct stationhouse, Police Officer Lindsey Robles strip-searched § 87(2)(b)

Allegation (E) Abuse of Authority: At the 24th Precinct stationhouse, Police Officer Lindsey Robles performed a cavity search of § 87(2)(b)

At the front desk of the 24th Precinct stationhouse, § 87(2)(b) was crying "hysterically" and rocking back and forth because she was nervous. PO Robles allegedly raised her palm, extended it forward to § 87(2)(b) face without touching her, and said, "Step back, dude," two to three times. § 87(2)(b) did not understand why PO Robles told her to step back, but she complied. § 87(2)(b) was "traumatized" by this remark because people frequently refer to her as a man or a transgender woman, although she is neither. While they were still at the front desk, PO Robles allegedly stretched § 87(2)(b) shirt forward, reached though the top of § 87(2)(b) shirt, looked down her shirt, and touched her bare breasts near her nipples with four fingers. § 87(2)(b) was not wearing a bra. PO Robles' hand was allegedly in § 87(2)(b) shirt for slightly more than ten seconds. PO Robles then allegedly unzipped § 87(2)(b) pants, pulled them forward, reached into the front of the pants, and penetrated § 87(2)(b) bare, exposed vagina with her finger for approximately ten seconds without saying anything. PO Robles then allegedly reached into the rear of § 87(2)(b) pants and touched her bare buttocks, including the cleft of

her buttocks, for approximately ten seconds without saying anything. § 87(2)(b) was not wearing any undergarments, and PO Robles was not wearing any gloves. PO Robles did not give § 87(2)(b) any commands or say anything to her besides, “Step back, dude,” before allegedly touching these areas, and she did not warn her that she was going to touch these areas. § 87(2)(b) believed PO Robles touched her intimate areas in order to determine her gender because she had previously called her a “dude.” § 87(2)(b) stated that PO Bodner and an unidentified male officer in a white uniform seated at the front desk were present during this interaction.

The Command Log (Board Review 12) makes no mention of a strip-search of § 87(2)(b) being conducted or approved. According to Captain Michael Joy of the Information Technology Bureau, Strategic Technology Division, the surveillance cameras at the 24th Precinct stationhouse were offline on the incident date (Board Review 13).

PO Robles did not know whether § 87(2)(b) was moving her body at the front desk, and she stated that § 87(2)(b) was compliant with her instructions at the desk. At no point at the stationhouse was § 87(2)(b) standing anywhere that she should not have been standing. PO Robles denied saying, “Step back dude,” to § 87(2)(b) or calling her a “dude” at any point. PO Robles stated that § 87(2)(b) did not complain that an officer referred to her with a male pronoun at any point. PO Robles did not recall ordering § 87(2)(b) to step back for any reason. At the front desk, PO Robles searched § 87(2)(b) waistband and bra straps and felt down the center of her spine. PO Robles stated that she searched the waistband by inserting her latex-gloved fingers into the waistband and feeling the interior of the top of the waistband. PO Robles denied reaching any further into § 87(2)(b) pants than then beltline. PO Robles’ hands were in § 87(2)(b) waistband for fewer than ten seconds. PO Robles did not believe § 87(2)(b) was wearing a bra, but she still searched § 87(2)(b) bra strap area because it is protocol to search this area. If § 87(2)(b) was wearing a bra, PO Robles would have searched this area by running her hands underneath § 87(2)(b) bra straps. PO Robles stated that she did not pull the front of § 87(2)(b) shirt forward in such a manner that exposed her bare breasts, and she did not reach any further into § 87(2)(b) shirt than the bra strap area. PO Robles stated that she did not unzip § 87(2)(b) pants, expose her vagina, perform a cavity search on her vagina, or touch her bare buttocks. The search at the front desk lasted fewer than 30 seconds, and PO Robles did not feel anything when she searched those areas. PO Robles stated that § 87(2)(b) was not strip-searched or cavity searched, and that her search of § 87(2)(b) was conducted as per standard protocol. § 87(2)(b) did not appear to be carrying anything on her person, and there were no bulges in her clothing.

PO Gomez stated that he was present with PO Robles and § 87(2)(b) at the front desk from the moment they arrived at the stationhouse until the moment PO Robles brought § 87(2)(b) to the cell area. PO Gomez did not recall whether PO Robles said, “Step back, dude,” or whether PO Robles referred to § 87(2)(b) as a “dude” or with a male pronoun. PO Gomez stated that PO Robles searched § 87(2)(b) at the desk, but he did not recall specifically which parts of § 87(2)(b) person PO Robles searched. PO Gomez stated that PO Robles did not pull the front of § 87(2)(b) shirt forward in a manner that exposed her breasts, reach into § 87(2)(b) shirt, touch her bare breasts or buttocks, or unzip and reach into the front of § 87(2)(b) pants. PO Gomez stated that no cavity search was conducted on § 87(2)(b) vagina while they were together at the front desk. No officer authorized a strip-search to be conducted on § 87(2)(b) in PO Gomez’s presence. PO Gomez stated that nothing remarkable happened at the front desk.

PO Bodner stated that he entered the 24th Precinct stationhouse and saw § 87(2)(b) at the front desk with PO Robles. PO Bodner did not recall PO Robles saying, “Step back, dude,” to § 87(2)(b) at the front desk, and he had no knowledge of any officer calling § 87(2)(b) a “dude.” PO Bodner was present at the front desk when PO Robles searched § 87(2)(b) and patted her entire body down. PO Bodner was unaware of PO Robles pulling § 87(2)(b) shirt forward in a manner that exposed her breasts. He stated that PO Robles did not reach down into § 87(2)(b) shirt, and he had no knowledge of PO Robles unzipping or reaching into § 87(2)(b) pants or penetrating her vagina. PO Bodner stated that § 87(2)(b) vagina was not exposed. PO Bodner was unaware of PO Robles touching § 87(2)(b) bare buttocks. PO Bodner stated that no strip search was conducted on § 87(2)(b) at any point, and he had no knowledge of any cavity search being conducted on § 87(2)(b) at any point.

§ 87(2)(g) [REDACTED]

[REDACTED]

[REDACTED]. It is therefore recommended that **Allegations C, D, and E** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- PO Nelson Gomez has been a member-of-service for three years and has been a subject in one prior CCRB complaint and one allegation which was not substantiated (Board Review 18). § 87(2)(g) [REDACTED]
- PO Lindsey Robles has been a member-of-service for nine years and has been a subject in one prior CCRB complaint and three allegations which were not substantiated (Board Review 18). § 87(2)(g) [REDACTED]

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- As of May 30, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 19).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad No.: 01

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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